WEB COPY

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 09-10-2026

CORAM

THE HON'BLE MR.JUSTICE N.RAMESH

CRL OP No. 26284 of 2026

CNR: {HCMA012140432026}

Case QR

Silu Chhinchani

..Petitioner(s)

Vs

State Rep.by,
The Inspector of Police
PEW - Tambaram Police Station,
Tambaram, Cr.No.52 of 2025.

..Respondent(s)

PRAYER: This criminal original petition filed under Section 482 BNSS Act to enlarge on bail in CC.No.758 of 2025 in Cr.No.52 of 2025 pending on the file of the I Additional Special Judge, Special Court for EC and NDPS Act, Chennai.

For Petitioner(s): Mr.S.Karthikeyan
for Mr.K.Subburaj

For Respondent(s): Mr.M.M.I.Khaleel,
Govt.Advocate (Crl.Side)

ORDER

This is a petition for bail, under Section 483 of BNSS, in a case under the NDPS Act ('the Act'). The petitioner is the sole accused in Crime No.52 of 2025 on the file of the Inspector of Police, Prohibition Enforcement Wing, Tambaram, registered on 08.04.2025 for offences under Section 8(c) read with Section 20(b)(ii)(C) of the Act. The final report has been taken on file as

https://www.mhc.tn.gov.in/judis

WEB COPY

C.C.No.758 of 2025 by the learned I Additional Special Judge, Special Court for EC and NDPS Act Cases, Chennai. This is the sixth petition for bail by the petitioner before this Court.

2. The case of the prosecution is that on 08.04.2025, on information that a person from Odisha would bring ganja for sale near the service road at K.R.B. Nagar, Anakaputhur, a police party of the respondent waited at that place and, at about 17.15 hours, intercepted the petitioner, a native of Gajapati District, Odisha. He was carrying two trolley bags. The first information report states that a black plastic cover in the maroon bag held about 12 kilograms of dry ganja, and a black plastic cover in the sky-blue bag about 10 kilograms, in all about 22 kilograms. The contraband and a mobile phone were seized under a mahazar between 17.30 and 18.00 hours, and the petitioner was arrested at 18.05 hours.

3. The quantity alleged, 22 kilograms, exceeds the commercial quantity by 2 kilograms, or one part in eleven. If it is a commercial quantity, the offence is punishable with rigorous imprisonment for not less than ten years, which may extend to twenty years, and Section 37 of the Act governs the petition. Samples S1 and S3 reached the Forensic Sciences Department, Chennai, on 16.06.2025, sixty-nine days after the seizure. The report in T.No.6749 NAR 880/2025 dated 17.06.2025, which the respondent has annexed to its counter affidavit, describes each sample as *dry greenish brown broken leaves, leaf stalks, flowering tops*

https://www.mhc.tn.gov.in/judis

WEB COPY

and seeds, weighing 61.9 grams and 59.8 grams net, and records that cannabinoids were detected in both.

4. The petitioner has been in custody since 08.04.2025, that is, for one year and six months. The final report was filed on 01.08.2025 and was taken on file on 04.09.2025. The case status of the Special Court, as on 03.09.2026, shows that the case has been listed repeatedly since 20.11.2025, each time for "Remand", and stood posted to 07.09.2026. Charges have not been framed. The counter affidavit does not say otherwise.

5. The earlier petitions before this Court are Crl.O.P.No.23040 of 2025, dismissed on 20.08.2025; Crl.O.P.No.29736 of 2025, dismissed on 02.12.2025; Crl.O.P.No.34975 of 2025, dismissed on 05.01.2026; Crl.O.P.No.6843 of 2026, dismissed on 02.04.2026; and Crl.O.P.No.12160 of 2026, dismissed on 17.06.2026. The petition and the counter affidavit list the same five. Each of those orders proceeded on the figure of 22 kilograms as a commercial quantity. The second and third orders also took note of the custody and of the delay in framing charges, and held that these did not overcome Section 37. The fourth order, while dismissing the petition, requested the Special Court to dispose of the case as expeditiously as possible. None of the orders refers to the report of the laboratory or to what the 22 kilograms consisted of.

6. Learned counsel for the petitioner submits that the report of the laboratory shows that the seized material contained leaves, leaf stalks and seeds;

https://www.mhc.tn.gov.in/judis

WEB COPY

that these were weighed with the flowering tops; and that, if the parts which the definition in Section 2(iii)(b) of the Act does not take in are left out, the ganja would fall below the commercial quantity. He relies on **Kunal Dattu Kadu v. Union of India, 2022 SCC OnLine Bom 1770** and on **Rajesh Sahu v. State of Chhattisgarh**, order of the Supreme Court dated 01.09.2025. He further submits that the arrest intimation was only a printed proforma, in breach of Article 22(1) of the Constitution; that the option offered to the petitioner under Section 50 of the Act included a third option not known to law, relying on **State of Punjab v. Baldev Singh, (1999) 6 SCC 172** and **State of Himachal Pradesh v. Surat Singh, 2026 SCC OnLine SC 376**; that no application under Section 52A(2) was made, that the samples were not forwarded within the time stipulated by Rule 14 of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022, relying on **Rambabu v. State of Rajasthan**, order of the Supreme Court dated 13.08.2025 in SLP (Crl.) No.5648 of 2025; and that the seizure was not video recorded. The definition of ganja and Rule 14 are said to be new grounds.

7. Learned Government Advocate (Criminal Side), on the basis of counter affidavit of Inspector of Police, opposed the petition. The counter affidavit states that about 22 kilograms of ganja, a commercial quantity, was recovered; that this is the sixth petition and the petitioner cannot circumvent the effect of earlier bail orders *by merely describing previously available legal grounds as*

https://www.mhc.tn.gov.in/judis

WEB COPY

"new grounds"; that Kunal Dattu Kadu (cited supra) and Rajesh Sahu (cited supra) turned on their own facts; and, in paragraph 13, that *the petitioner has not demonstrated from the prosecution records that the entire alleged quantity of 22 kilograms consists only of excluded seeds/leaves/stalks*. It answers the remaining grounds by saying that Section 50 does not apply to the search of a bag, that no prejudice from the form of the arrest intimation has been shown, and that delay in compliance with Section 52A and the Rules does not satisfy Section 37. Reliance is placed on **Union of India v. Shiv Shanker Kesari, (2007) 7 SCC 798**, **State of Kerala v. Rajesh, (2020) 12 SCC 122** and **Narcotics Control Bureau v. Mohit Aggarwal, (2022) 18 SCC 374**.

8. I have considered the rival submissions and perused the material placed before me.

9. Ganja is defined by Section 2(iii)(b) of the Act as *the flowering or fruiting tops of the cannabis plant (excluding the seeds and leaves when not accompanied by the tops)*. The bar in Section 37(1)(b)(ii) is attracted only where the offence involves a commercial quantity. It is for the prosecution, which invokes the bar, to place before the Court the material from which it can be seen that the threshold has been crossed. On the parts of the plant, a learned Judge of this Court in **Ganesan v. The Deputy Superintendent of Police, Crl.A.(MD)No.212 of 2020 and batch, dated 15.10.2025**, held that

https://www.mhc.tn.gov.in/judis

WEB COPY

If the flowering or fruiting tops of cannabis plant are not separately recovered and recovered with stalks and stem, the legal requirement is to exclude the weight of the stalks and stem.

and that

The said compliance is legally required to be followed in the border line cases of the recovered contraband having weight between 21 and 25 kgs.

10. I have applied that decision in **Crl.O.P.No.17678 of 2026, dated 28.08.2026**, where the report described the sample from a seizure of 21.5 kilograms in much the same terms, and in **Crl.O.P.No.24478 of 2026**, where the sample from a seizure of 21 kilograms contained leaf stalks. In **Rajesh Sahu** (cited supra), the Supreme Court granted bail where the seized quantity was a little above the commercial quantity and was found to contain leaves, seeds and dry vegetative floral parts, which, it observed, needed to be excluded while computing the actual quantity of ganja.

11. This case falls within the band Ganesan (cited supra) speaks of. Each of the two samples is described by the laboratory as containing leaf stalks. The first information report gives each lot as "about" 12 kilograms and "about" 10 kilograms of dry ganja, each weighed in bulk at the spot. Nothing on the record shows that the stalks were separated or weighed apart, or how much of the 22 kilograms consisted of flowering or fruiting tops with their accompanying leaves and seeds. The answer in paragraph 13 of the counter affidavit asks the

https://www.mhc.tn.gov.in/judis

WEB COPY

wrong question. The petitioner does not have to show that the whole of the 22 kilograms consists of excluded parts. The question is whether the ganja, as defined, is shown to exceed 20 kilograms, and on a margin of 2 kilograms the respondent's own report leaves that open. I do not hold that the quantity is below the commercial quantity. That is a matter on which evidence will be led, and I leave it entirely to the Special Court. I hold only that there is a real possibility that the ganja, excluding the stalks, is below the commercial quantity. On the material as it stands, I am satisfied that there are reasonable grounds for believing that the petitioner is not guilty of an offence involving a commercial quantity. The counter affidavit does not attribute any previous case to the petitioner, and I am satisfied that he is not likely to commit any offence while on bail.

12. The other grounds do not need to be decided. The arrest intimation has not been placed before me, the plea on it is stated in a single sentence, and it was available in each of the earlier petitions; I leave it open. Whether Section 50 of the Act was attracted to the search of the two trolley bags, and whether the option offered complied with it, are questions for the trial; **Surat Singh** (cited supra) was decided in an appeal after a full trial. A lapse or delay in compliance with Section 52A by itself neither vitiates the trial nor entitles the accused to bail, as held in **Narcotics Control Bureau v. Kashif, 2024 INSC 1045**, and Rambabu (cited supra) is a short order on its own facts. The decision relied on

https://www.mhc.tn.gov.in/judis

WEB COPY

for video recording, as extracted in the petition, turned on directions of the High Court at Calcutta. I rest nothing on any of these points.

13. The decisions relied on by the respondent state the rigour of Section 37 where it applies. They do not assist where the prosecution's own material does not show that the commercial quantity has been crossed.

14. The investigation is complete, and the prosecution's material is documentary and in its own hands. The apprehension recorded in the first order, that the petitioner, who hails from Odisha, may abscond, is real, and it is to be met by conditions that fix his address and his attendance, and that allow the Special Court to act on any breach.

15. The observations in this order are prima facie and are confined to the disposal of this petition. They are not an expression of opinion on the weight or composition of the contraband, or on compliance with Sections 42, 50 and 52A of the Act and the Rules of 2022. The Special Court shall decide every question on the evidence let in before it, uninfluenced by anything stated here.

16. Accordingly, this Criminal Original Petition is allowed and the petitioner is ordered to be released on bail on his executing a bond for a sum of Rs.25,000/- (Rupees Twenty Five Thousand only) with two sureties, out of the two sureties, one shall be a local surety from Tamil Nadu and one from his blood relative, each for a like sum, to the satisfaction of the learned I Additional Special Judge, Special Court for EC and NDPS Act Cases, Chennai, in

https://www.mhc.tn.gov.in/judis

WEB COPY

C.C.No.758 of 2025, on the following conditions:

[a] the sureties shall affix his photographs and Left Thumb Impression in the Application for Surety ship [Judicial Form No.46 annexed to 'The Criminal Rules of Practice, 2019']. The learned Magistrate shall obtain a copy of any one of the identity proofs to ensure his identity;

[b] before his release, the petitioner shall file before the Special Court an affidavit stating his permanent address in Odisha, the address at which he will reside while on bail and his mobile number, with proof of each, and shall not change that address or number without prior intimation in writing to the Special Court;

[c] the petitioner shall appear before the Special Court on every date of hearing, unless his appearance is dispensed with by that Court.

[d] the petitioner shall not abscond either during investigation or trial;

[e] the petitioner shall not tamper with the evidence or witness either during investigation or trial;

[f] On breach of any of the aforementioned conditions, the learned Magistrate/Trial Court is entitled to pass appropriate orders against the petitioner in accordance with law as if the aforementioned conditions have been imposed and the petitioner released on bail by the learned Magistrate/Trial Court himself as laid down by the Hon'ble Supreme Court in **P.K.Shaji vs. State of Kerala [(2005)13 SCC 283];**

https://www.mhc.tn.gov.in/judis

WEB COPY

[g] If the accused thereafter absconds, a fresh FIR can be registered under Section 269 of B.N.S.

09-10-2026

Index: Yes/No
Speaking/Non-speaking order
Neutral Citation: Yes/No
sms

Note:

1. Registry is directed to forthwith upload this order in the Official Website of this Court.

2. All concerned to act on this order being uploaded in Official Website of this Court without insisting on certified hard copies. To be noted, this order when uploaded in the official website of this Court will be watermarked and will also have a QR code.

To
1.I Additional Special Judge,
Special Court for EC and NDPS Act,
Chennai.

2.The Superintendent of Police
Central Prison, Puzhal.

3.The Inspector of Police
PEW - Tambaram Police Station,
Tambaram, Cr.No.52 of 2025.

4.The Public Prosecutor
High Court, Madras.

https://www.mhc.tn.gov.in/judis

WEB COPY

N.RAMESH, J.

sms

CRL OP No. 26284 of 2026

09-10-2026

https://www.mhc.tn.gov.in/judis